

Sri Ranjan Baruah vs Smti Shravani Khound Baruah on 14 September, 2023

Author: Parthivjyoti Saikia

Bench: Parthivjyoti Saikia

Page No.# 1/11

GAHC010037932017

THE GAUHATI HIGH COURT
(HIGH COURT OF ASSAM, NAGALAND, MIZORAM AND ARUNACHAL PRADESH)

Case No. : Mat.App./49/2017

SRI RANJAN BARUAH
S/O SRI CHANDRADHAR BARUAH, R/O CHOLADHARA CHARIA-ALI, T.R.
PHUKAN ROAD, P.O. and P.S. JORHAT, PIN 785001, DIST., JORHAT, ASSAM.

VERSUS

SMTI SHRAVANI KHOUND BARUAH
W/O SRI RANJAN BARUAH, R/O CHOLADHARA CHARI ALI, T.R. PHUKAN
ROAD, P.O. and P.S. JORHAT, PIN 785001, DIST. JORHAT, ASSAM. PRESENTLY
RESIDING AT CARE OF SRI JITUMONI SHARMA, PRAGATI NAGAR, NA-
ALI, NEAR PETROL PUMP, HOUSE NO. 19, 1ST FLOOR TULSHI TOL, P.O. and
P.S. JORHAT, PIN 785001, DIST. JORHAT, ASSAM.

Advocate for the Petitioner : MS.P BORTHAKUR

Advocate for the Respondent : MR. S BORTHAKUR

PRESENT THE HON'BLE MR. JUSTICE PARTHIVJYOTI SAIKIA For the Appellant : Mr. A. Chamuah, Advocate.

For the Respondent :

Ms. P. Bora,
Advocate.

Date of Hearing :

07.09.2023.

Date of Judgment :

14.09.2023.

Page No.# 2/11

JUDGMENT AND ORDER (CAV)

Heard Mr. A. Chamuah, learned counsel representing the appellant as well as Ms. P. Bora, learned counsel appearing for the respondent.

2. This is an appeal under Section 28 of the Hindu Marriage Act, 1955 challenging the judgment dated 16.05.2017 passed by the learned District Judge, Jorhat in Title Suit (M) 79/2011.

3. The appellant is the only child of his old parents. He is an employee of a Bank. He married the respondent on 02.05.2004. Out of the wedlock, a girl child was born to the couple on 04.08.2005.

4. Very soon, the couple fell from cloud nine. The respondent started to misbehave with the appellant and his old parents. The cracks in their relationship grew bigger day-after-day. She started to threaten them that she will file an FIR in the police station alleging demand of dowry.

5. Ultimately, the old parents of the appellant had to leave their ancestral house to live in a rented house. It is alleged that the respondent even used to go the work place of the appellant where she openly quarreled with the appellant in front other employees.

6. Even, the appellant had to shift to a rented house. In the meantime, he was transferred to Manipur and he had to go to Manipur. But he used to maintain his wife/the respondent and his child.

7. It is stated that since the year 2009, the appellant and the respondent are not maintaining the relationship of husband and wife though they live under the same roof.

Page No.# 3/11

8. Narrating the aforesaid facts, the appellant filed the application under Section 13(1) of the Hindu Marriage Act, 1955 praying for a decree of dissolution of marriage.

9. The respondent contested the case by filling written statement. She has admitted that she lives in the same rented house with the appellant, but she lives in separate rooms. She alleges that the appellant and his mother subjected her to cruelty. According to the respondent, the appellant and his mother took away a cash amount of 53,000/- and the gold ornaments given to her by her parents at the time of her marriage. She further claims that she was misbehaved by the mother of the appellant for giving birth to a female child. Lastly, the respondent claimed that the appellant filed the divorce proceeding on false ground in order to remarry another girl.

10. On the basis of the pleadings of the parties, the court below framed the following issues:

- (i) Whether the suit is maintainable?

- (ii) Whether there is cause of action for the suit?
- (iii) Whether the respondent wife is guilty of cruelty against the petitioner husband?
- (iv) Whether the respondent wife is guilty of deserting the petitioner husband for more than two years?
- (v) To what relief/reliefs the parties are entitled to?

11. During the trial of the case, the appellant examined himself along with his mother and another person called Parag Tamuli. The respondent Page No.# 4/11 examined herself only.

12. On the basis of the evidence on record, the trial court dismissed the suit of the appellant.

13. I have carefully gone through the evidence.

14. The witness Parag Tamuli is a Security Guard of the Bank where the appellant used to work. He has stated in his evidence that on more than one occasion, the respondent had come to the Bank and publicly quarreled with the appellant.

15. It is an admitted fact that the respondent, though lived in the same house with the appellant, used to live in separate rooms since long. Thus, it is an admitted fact that the appellant and the respondent never had the relationship of husband and wife.

16. Now, I shall rely upon a judgment of the Supreme Court that was delivered in Samar Ghosh v. Jaya Ghosh, reported in (2007) 4 SCC 511. Paragraph 101 of the judgment is quoted as under:

"101. No uniform standard can ever be laid down for guidance, yet we deem it appropriate to enumerate some instances of human behaviour which may be relevant in dealing with the cases of "mental cruelty". The instances indicated in the succeeding paragraphs are only illustrative and not exhaustive:

(i) On consideration of complete matrimonial life of the parties, acute mental pain, agony and suffering as would not make possible for the parties to live with each other could come within the broad parameters of mental cruelty.

(ii) On comprehensive appraisal of the entire matrimonial life of the parties, it becomes abundantly clear that situation is such that the wronged party cannot reasonably be asked to put up with such conduct and continue to live with other party.

(iii) Mere coldness or lack of affection cannot amount to cruelty, frequent rudeness of language, petulance of manner, indifference and neglect may reach such a degree that it makes the married life for the other spouse absolutely intolerable.

(iv) Mental cruelty is a state of mind. The feeling of deep anguish, Page No.# 5/11 disappointment, frustration in one spouse caused by the conduct of other for a long time may lead to mental cruelty.

(v) A sustained course of abusive and humiliating treatment calculated to torture, discommode or render miserable life of the spouse.

(vi) Sustained unjustifiable conduct and behaviour of one spouse actually affecting physical and mental health of the other spouse. The treatment complained of and the resultant danger or apprehension must be very grave, substantial and weighty.

(vii) Sustained reprehensible conduct, studied neglect, indifference or total departure from the normal standard of conjugal kindness causing injury to mental health or deriving sadistic pleasure can also amount to mental cruelty.

(viii) The conduct must be much more than jealousy, selfishness, possessiveness, which causes unhappiness and dissatisfaction and emotional upset may not be a ground for grant of divorce on the ground of mental cruelty.

(ix) Mere trivial irritations, quarrels, normal wear and tear of the married life which happens in day-to-day life would not be adequate for grant of divorce on the ground of mental cruelty.

(x) The married life should be reviewed as a whole and a few isolated instances over a period of years will not amount to cruelty. The ill conduct must be persistent for a fairly lengthy period, where the relationship has deteriorated to an extent that because of the acts and behaviour of a spouse, the wronged party finds it extremely difficult to live with the other party any longer, may amount to mental cruelty.

(xi) If a husband submits himself for an operation of sterilisation without medical reasons and without the consent or knowledge of his wife and similarly, if the wife undergoes vasectomy or abortion without medical reason or without the consent or knowledge of her husband, such an act of the spouse may lead to mental cruelty.

(xii) Unilateral decision of refusal to have intercourse for considerable period without there being any physical incapacity or valid reason may amount to mental cruelty.

(xiii) Unilateral decision of either husband or wife after marriage not to have child from the marriage may amount to cruelty.

(xiv) Where there has been a long period of continuous separation, it may fairly be concluded that the matrimonial bond is beyond repair. The marriage becomes a fiction though supported by a legal tie. By refusing to sever that tie, the law in such cases, does not serve the sanctity of marriage; on the contrary, it shows scant regard

for the feelings and emotions of the parties. In such like situations, it may lead to mental cruelty."

17. In Anju Saha v. Gobinda Saha, reported in (2014) 4 GLR 56, this Court has held that if mental cruelty as alleged by a person seeking a decree Page No.# 6/11 of divorce is proved and the court is of the opinion that because of such mental cruelty as well as long separation between the parties the marriage has irretrievably broken down, the court may pass a decree dissolving the marriage between the parties as marriage can be dissolved on the ground of cruelty.

18. In Vinita Saxena v. Pankaj Pandit, (2006) 3 SCC 778, the Hon,ble Supreme Court said;

"It is settled by a catena of decisions that mental cruelty can cause even more serious injury than the physical harm and create in the mind of the injured appellant such apprehension as is contemplated in the section. It is to be determined on whole facts of the case and the matrimonial relations between the spouses. To amount to cruelty, there must be such willful treatment of the party which caused suffering in body or mind either as an actual fact or by way of apprehension in such a manner as to render the continued living together of spouses harmful or injurious having regard to the circumstances of the case.

19. In Dr. (Mrs.) Malathi Ravi v. Dr. B.V. Ravi, (2014) 7 SCC 640, the Supreme Court has noted all the relevant cases which dealt with the issue of mental cruelty. The relevant portion of the said judgment is quoted hereunder:

"29. Before we proceed to deal with the issue of mental cruelty, it is appropriate to state how the said concept has been viewed by this Court. In Vinita Saxena v. Pankaj Pandit [(2006) 3 SCC 778] , while dealing with the issue of mental cruelty, the Court held as follows:

"31. It is settled by a catena of decisions that mental cruelty can cause even more serious injury than the physical harm and create in the mind of the injured appellant such apprehension as is contemplated in the section. It is to be Page No.# 7/11 determined on whole facts of the case and the matrimonial relations between the spouses. To amount to cruelty, there must be such wilful treatment of the party which caused suffering in body or mind either as an actual fact or by way of apprehension in such a manner as to render the continued living MAT. APP. 5/2013 Page 13 of 45 together of spouses harmful or injurious having regard to the circumstances of the case.

xxx xxx xxx

35. Each case depends on its own facts and must be judged on these facts. The concept of cruelty has varied from time to time, from place to place and from individual to individual in its application according to social status of the persons

involved and their economic conditions and other matters. The question whether the act complained of was a cruel act is to be determined from the whole facts and the matrimonial relations between the parties. In this connection, the culture, temperament and status in life and many other things are the factors which have to be considered."

30. In *Samar Ghosh v. Jaya Ghosh* [(2007) 4 SCC 511] this Court has given certain illustrative examples wherefrom inference of mental cruelty can be drawn. The Court itself has observed that they are illustrative and not exhaustive. We think it appropriate to reproduce some of the illustrations: (SCC pp. 546-47, para 101) "(i) On consideration of complete matrimonial life of the parties, acute mental pain, agony and suffering as would not make possible for the parties to live with each other could come within the broad parameters of mental cruelty.

(ii) On comprehensive appraisal of the entire matrimonial life of the parties, it becomes abundantly clear that situation is such that the wronged party cannot reasonably be asked to put up with such conduct and continue to live with other party.

(iv) Mental cruelty is a state of mind. The feeling of deep anguish, disappointment, frustration in one spouse caused by the conduct of other for a Page No.# 8/11 long time may lead to mental cruelty.

xxx xxx xxx

(vii) Sustained reprehensible conduct, studied neglect, indifference or total departure from the normal standard of conjugal kindness causing injury to mental health or deriving sadistic pleasure can also amount to mental cruelty.

xxx xxx xxx

(x) The married life should be reviewed as a whole and a few isolated instances over a period of years will not amount to cruelty. The ill conduct must be persistent for a fairly lengthy period, where the relationship has deteriorated to an extent that because of the acts and behaviour of a spouse, the wronged party finds it extremely difficult to live with the other party any longer, may amount to mental cruelty.

xxx xxx xxx

(xiv) Where there has been a long period of continuous separation, it may fairly be concluded that the matrimonial bond is beyond repair. The marriage becomes a fiction though supported by a legal tie. By refusing to sever that tie, the law in such cases, does not serve the sanctity of marriage; on the contrary, it shows scant regard for the feelings and emotions of the parties. In such like situations, it may lead to mental cruelty."

20. In *U. Sree v. U. Srinivas* (2013) 2 SCC 114, the Supreme Court, taking note of the deposition of the husband that the wife had consistently ill-treated him inasmuch as she had shown her immense dislike towards his "sadhna" in music and had exhibited total indifference to him, observed as follows:

"23. ... It has graphically been demonstrated that she had not shown the slightest concern for the public image of her husband on many an occasion by Page No.# 9/11 putting him in a situation of embarrassment leading to humiliation. She has made wild allegations about the conspiracy in the family of her husband to get him remarried for the greed of dowry and there is no iota of evidence on record to substantiate the same. This, in fact, is an aspersion not only on the character of the husband but also a maladroit effort to malign the reputation of the family."

It would be useful to refer to the judgment of the Apex Court in the case of *Naveen MAT. APP. 5/2013* Page 19 of 45 *Kohli v. Neelu Kohli*, (2006) 4 SCC 558, where it was held that:

"To constitute cruelty, the conduct complained of should be „grave and weighty so as to come to the conclusion that the petitioner spouse cannot be reasonably expected to live with the other spouse. It must be something more serious than „ordinary wear and tear of married life . The conduct taking into consideration the circumstances and background has to be examined to reach the conclusion whether the conduct complained of amounts to cruelty in the matrimonial law. Conduct has to be considered, as noted above, in the background of several factors such as social status of parties, their education, physical and mental conditions, customs and traditions. It is difficult to lay down a precise definition or to give exhaustive description of the circumstances, which would constitute cruelty. It must be of the type as to satisfy the conscience of the Court that the relationship between the parties had deteriorated to such extent due to the conduct of the other spouse that it would be impossible for them to live together without mental agony, torture or distress, to entitle the complaining spouse to secure divorce. Physical violence is not absolutely essential to constitute cruelty and a consistent course of conduct inflicting immeasurable mental agony and torture may well constitute cruelty within the meaning of Section 10 of the Act. Mental cruelty may consist of verbal abuses and insults by using filthy and abusive language leading to constant disturbance of mental peace of the other party.

Page No.# 10/11 The Court dealing with the petition for divorce on the ground of cruelty has to bear in mind that the problems before it are those of human beings and the psychological changes in a spouse's conduct have to be borne in mind before disposing of the petition for divorce. However, insignificant or MAT. APP. 5/2013 before the conduct can be called cruelty, it must touch a certain pitch of severity. It is for the Court to weigh the gravity. It has to be seen whether the conduct was such that no reasonable person would tolerate it. It has to be considered whether the complainant should be called upon to endure as a part of normal human life. Every matrimonial conduct, which may cause annoyance to the other, may not amount to

cruelty. Mere trivial irritations, quarrels between spouses, which happen in day-to-day married life, may also not amount to cruelty. Cruelty in matrimonial life may be of unfounded variety, which can be subtle or brutal. It may be words, gestures or by mere silence, violent or non-violent."

21. In Jaydeep Mazumdar v. R.P. Jaiswal Mazumdar, reported in (2021) 3 SCC 742, the wife made complaints to the superior officer of her husband. Supreme Court held that the act of the wife amounts to mental cruelty.

22. Under Section 13(1)(ia) of the Hindu Marriage Act, 1955, a marriage can be dissolved on the ground of cruelty by one spouse to the other. „Cruelty may be physical or mental. The term „cruelty means when one spouse has so treated the other and manifested towards him or her so as to cause such feelings towards him or her as to cause in her or his mind reasonable apprehension that it will be harmful or injurious to live with the other spouse.

23. In the case in hand, two facts are proved- (1) the respondent used Page No.# 11/11 to go to the work place of the appellant and there, she had quarreled with him in front of other employees and (2) the appellant and the respondent are not maintaining the normal relationship of husband and wife for a long time since 2009.

24. I find that it is proved with mere preponderance of probability that the appellant was subjected to mental cruelty by the respondent. The marriage between the appellant and the respondent has irretrievably broken down. I am of the considered opinion that the learned court below has erroneously interpreted the available evidence and arrived at an incorrect finding.

25. Therefore, the impugned judgment is set aside. The marriage between the appellant and the respondent is dissolved.

26. The appeal is accordingly allowed and disposed of.

Send back the LCR.

JUDGE Comparing Assistant